
Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Leudelange

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Deliberation no. 10FR/2023 of July 24, 2023

The National Commission for Data Protection sitting in a restricted formation composed of Ms. Tine A. Larsen, President, and Messrs. Thierry Lallemand and Marc Lemmer, Commissioners;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016

on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC;

Having regard to the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection, in particular its Article 41;

Having regard to the internal rules of the National Commission for Data Protection adopted by decision no. 3AD/2020 dated January 22, 2020, in particular its Article 10 point 2;

Having regard to the regulation of the National Commission for Data Protection concerning the investigation procedure adopted by decision no. 4AD/2020 dated January 22, 2020, in particular its Article 9;

Considering the following:

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I. Facts and Procedure

During its deliberation session on December 9, 2022, the National Commission for Data Protection sitting in plenary decided to open an investigation with the Municipal Administration of Leudelange, located at 5, Place des Martyrs, L-3361 Leudelange (hereinafter: the “controlled entity”), based on Article 38 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection (hereinafter: the “law of August 1, 2018”) and to appoint Mr. Alain Herrmann as the head of the investigation.

The said decision specified that the investigation conducted by the National Commission for Data Protection (hereinafter: the “CNPD” or the “National Commission”) aimed to verify the application and compliance with Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter: the “GDPR”) and the law of August 1, 2018 and legal texts providing specific provisions regarding the protection of personal data, and more specifically the application and compliance with Articles 37.1.a) and 37.7 of the GDPR.¹ The investigation specifically aimed to verify compliance with the obligation to appoint a data protection officer (hereinafter: “DPO”) and to communicate the contact details to the supervisory authority. It followed a general verification that the CNPD had conducted with all Luxembourg municipalities during the summer of 2022.

The controlled entity was informed of the opening of the investigation against it by a letter from the head of the investigation dated February 3, 2023. In this letter, the head of the investigation requested the controlled entity “to kindly take note of the initial findings below:

By letter dated August 11, 2022, the President of the CNPD reminded the Mayor of his obligation to

appoint a data protection officer (hereinafter the "DPO"), as well as his obligation to notify the CNPD of this appointment (DOCUMENT 1).

1 Deliberation No. [...] of December 9, 2022, of the National Commission for Data Protection regarding the opening of an investigation mission with the Municipal Administration of Leudelange.

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In the absence of a response from the Mayor, the President of the CNPD sent him a reminder dated September 23, 2022 (DOCUMENT 2).

As of the date of drafting this letter, and after consulting the register of data protection delegates, the investigating officers did not identify any designation of a DPD for your municipality.

The controlled party responded to the opening letter of investigation by letter dated March 10, 2023, after the CNPD had granted him an extension.

At the conclusion of his investigation, the head of the investigation notified the controlled party on March 31, 2023, of a communication of grievances detailing the breach he considered constituted in this case with respect to the requirements prescribed by Article 37.1.a) of the GDPR (obligation to designate a DPD).

The head of the investigation proposed to the National Commission sitting in a restricted formation (hereinafter: the "Restricted Formation") to adopt a corrective measure.

The opportunity to submit written observations on the communication of grievances was offered to the controlled party.

By letter dated May 2, 2023, the controlled party informed the head of the investigation that he had no comments to make regarding the communication of grievances.

The President of the Restricted Formation informed the controlled party by letter dated May 23, 2023, that his case would be included in the agenda of the Restricted Formation meeting on July 4, 2023, and that he was offered the opportunity to be heard.

By email dated June 27, 2023, the controlled party confirmed his attendance at the said meeting.

During this meeting, the head of the investigation, [...], and the controlled party, represented by [...], presented their oral observations in support of their written observations and answered questions posed by the Restricted Formation. The controlled party had the last word.

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II. In Law

II.1. On the grounds of the decision

On the breach related to the obligation to designate a DPD and to communicate his contact details to the CNPD

1. On the principles

In accordance with Article 37.1.a) of the GDPR, any data controller or processor must designate a DPD if the "processing is carried out by a public authority or body, except for courts acting in their judicial capacity."

Based on Article 37.7 of the GDPR, any data controller or processor is also obliged to communicate the contact details of the DPD to the supervisory authority, that is to say, in this case, to the CNPD.

In its guidelines concerning DPDs, the Article 29 Working Party specified the relevant provisions of the GDPR in this area to assist data controllers and processors in complying with the legislation, as well as to assist DPDs in their role.

It should be noted that the European Data Protection Board, which succeeded the Article 29 Working

Party on May 25, 2018, has adopted and reapproved the documents adopted by said Working Party between May 25, 2016, and May 25, 2018, including the aforementioned guidelines.

2. In this case

The head of the investigation noted in his communication of grievances that "on the date of the opening of the investigation, and after consulting the register of data protection delegates,

2 The guidelines concerning DPDs were adopted by the "Article 29" working group on December 13, 2016. The revised version (WP 243 rev. 01) was adopted on April 5, 2017.

3 See decision Endorsement 1/2018 of the EDPB of May 25, 2018, available at:

https://edpb.europa.eu/sites/edpb/files/files/news/endorsement_of_wp29_documents_en_0.pdf.

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data, the investigating agents did not identify the designation of a DPO for the Municipal Administration of Leudelange." Furthermore, it was noted that the controlled entity "designated a DPO on March 10, 2023, that is, after the opening of the investigation." Therefore, it was concluded that "the conditions of Article 37, paragraph (1) point a) of the GDPR were not respected."

The Restricted Formation wishes to emphasize that the controlled entity is a Luxembourg municipal administration and, as such, a public body required to designate a DPO no later than May 25, 2018, the date of application of the GDPR. It further notes that the controlled entity responded on March 10, 2023, to the letter from the head of the investigation dated February 3, 2023, informing it of the opening of the investigation against it. Attached to this letter of March 10, 2023, were an excerpt from the deliberations of the College of Mayors and Aldermen dated March 10, 2023, as well as the DPO declaration form to the CNPD, signed and dated the same day, according to which the Government Commissioner for Data Protection with the State had been designated as the DPO of the controlled entity.

The Restricted Formation can therefore only agree with the finding of the head of the investigation that at the date of the opening of the investigation, namely December 9, 2022, the controlled entity had not yet designated a DPO, despite reminder letters from the CNPD dated August 11, 2022, and September 23, 2022.

In light of the above, it concludes that at the beginning of the investigation, the controlled entity failed to meet its obligation arising from Article 37.1.a) of the GDPR.

Furthermore, the Restricted Formation notes that at the date of the opening of the investigation, the controlled entity had not communicated the contact details of its DPO to the CNPD in accordance with Article 37.7 of the GDPR. Therefore, since the monitoring of compliance with said article was within the scope of the investigation in question (cf. point 2 of this decision),

4 Communication of grievances, points 16 to 18.

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it considers that the controlled entity also failed to meet its obligation arising from Article 37.7 of the GDPR.

II. 2. On corrective measures

1. On the principles

In accordance with Article 12 of the law of August 1, 2018, the National Commission has the powers provided for in Article 58.2 of the GDPR:

- a) to warn a controller or a processor that the intended processing operations are likely to violate the provisions of this regulation;
- b) to reprimand a controller or a processor when the processing operations have resulted in a violation of the provisions of this regulation;
- c) to order the controller or the processor to comply with requests made by the data subject in order to exercise their rights under this regulation;
- d) to order the controller or the processor to bring the processing operations into compliance with the provisions of this regulation, where appropriate, specifically and within a determined timeframe;
- e) to order the controller to communicate to the data subject a personal data breach;
- f) to impose a temporary or definitive limitation, including a prohibition, on processing;
- g) to order the rectification or erasure of personal data or the restriction of processing in accordance with Articles 16, 17, and 18 and the notification of these measures to the recipients to whom the personal data have been disclosed in accordance with Article 17, paragraph 2, and Article 19;
- h) to withdraw a certification or to order the certification body to withdraw a certification issued under Articles 42 and 43, or to order the certification body to

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certification not to issue certification if the applicable requirements for certification are not or are no longer met;

- i) impose an administrative fine pursuant to Article 83, in addition to or in place of the measures referred to in this paragraph, depending on the specific characteristics of each case;
- j) order the suspension of data flows addressed to a recipient located in a third country or to an international organization.”

In accordance with Article 48 of the law of August 1, 2018, the CNPD may impose administrative fines as provided for in Article 83 of the GDPR, except against the State or municipalities.

The Restricted Formation wishes to clarify that the facts taken into account in the context of this decision are those observed at the beginning of the investigation. Any subsequent modifications regarding the data processing subject to the investigation, even if they allow for the establishment of full or partial compliance, do not retroactively annul an established breach.

Nevertheless, the steps taken by the controlled party to comply with the GDPR during the investigation procedure or to remedy the breaches identified by the head of the investigation in the communication of grievances are taken into account by the Restricted Formation in the context of any corrective measures to be pronounced.

2. In this case

In the communication of grievances, the head of the investigation “proposes to the Restricted Formation to issue a reprimand against the Controlled Party stating that it must comply with the applicable legislation regarding the appointment of a data protection officer.”⁵

Regarding the corrective measure proposed by the head of the investigation and by reference to point 21 of this decision, the Restricted Formation takes into account the steps taken by the controlled party to comply with the provisions of Articles 37.1.a) and 37.7 of the GDPR, as detailed in its letter of March 10, 2023.

In particular, it notes that on March 10, 2023, the controlled party sent to the CNPD the extract of the deliberations of the College of Mayors and Aldermen relating to the meeting of March 10, 2023, as well as the declaration form of the DPO, signed and dated on the same day, according to which the Government Commissioner for Data Protection of the State had been appointed as the DPO of the controlled party.

Nevertheless, at the time of the opening of the investigation, the controlled party had neither appointed a DPO nor communicated their contact details to the CNPD.

For these reasons, the Restricted Formation considers it appropriate to pronounce the corrective

measure proposed by the head of the investigation in this regard and reiterated in point 22 of this decision and to reprimand the controlled party for violating Articles 37.1.a) and 37.7 of the GDPR. Finally, pursuant to Article 52 of the law of August 1, 2018, the “CNPD may order, at the expense of the sanctioned person, the full or excerpted publication of its decisions, except for decisions relating to the imposition of penalties, and subject to:

1° the remedies against the decision being exhausted; and

2° the publication not posing a disproportionate risk of harm to the parties involved.”

The Restricted Formation considers that the publication of this decision does not pose a disproportionate risk of harm to the controlled party, but is justified in light of the public interest in knowing the results of the general verification that the CNPD conducted with all Luxembourg municipalities during the summer of 2022.

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Given the preceding developments, the National Commission sitting in a restricted formation, after deliberation, decides:

- to uphold the breaches of Articles 37.1.a) and 37.7 of the GDPR;
- to issue a reprimand against the Municipal Administration of Leudelange for violating Articles 37.1.a) and 37.7 of the GDPR;
- to publish the decision on the website of the National Commission as soon as the remedies are exhausted.

Belvaux, July 24, 2023,

The National Commission for Data Protection sitting in a restricted formation,

Tine A. Larsen

Thierry Lallemand

Marc Lemmer

President

Commissioner

Commissioner

Indication of remedies

This administrative decision may be subject to an appeal for reform within three months following its notification. This appeal must be brought before the administrative court and must necessarily be introduced through a lawyer at the Court of one of the Bar Associations.